



Constitutional and Political Development of Pakistan (1958-1971)

Background to Political Instability (Pre-1958)

Before the imposition of martial law in 1958, Pakistan was marked by political fragmentation and instability. The 1956 Constitution, which sought to establish a parliamentary democracy, quickly unraveled due to infighting among political parties and a lack of effective governance. The political landscape was dominated by regionalism and ethnic divisions, particularly between East and West Pakistan. East Pakistan, despite contributing significantly to the national economy, felt marginalized and underrepresented. This growing sense of alienation among the Bengali population set the stage for future conflicts and unrest, leading to a crisis that would eventually culminate in the separation of East Pakistan.

Imposition of Martial Law (1958):

October 7, 1958:

In a dramatic shift, General Muhammad Ayub Khan led a coup d'état against President Iskander Mirza, who had attempted to quell political dissent by declaring martial law. Ayub Khan, assuming control as the new head of state, immediately abrogated the 1956 Constitution, dissolving the national and provincial assemblies.

The imposition of martial law marked the beginning of a new era in Pakistan, characterized by military dominance over civilian governance. Political parties were banned, and a climate of fear and repression took hold, as the military sought to stabilize the nation through authoritarian means.

Ayub Khan's Regime (1958-1969)

Ayub Khan's era was defined by significant constitutional, economic, and political changes, shaping the trajectory of Pakistan's future.

Constitution of 1962:

Features: The new constitution established a presidential system, concentrating powers in the presidency while creating a unicameral legislature. This shift was designed to enhance Ayub's control and diminish the influence of political parties, which were seen as divisive.

Significance: While the constitution aimed to stabilize governance, it effectively stifled political dissent and reduced the potential for democratic engagement. Ayub Khan's regime was marked by the promise of development but also by a growing authoritarian grip.

Economic Policies: Under Ayub Khan, Pakistan experienced significant economic growth, often referred to as the "Decade of Development." The government focused on industrialization, agricultural reforms, and infrastructure development, leading to a rapid increase in GDP.

Challenges: Despite overall economic growth, disparities between East and West Pakistan widened. East Pakistan, which generated a large portion of the country's revenue through jute and other exports, received a disproportionately small share of investments. This economic neglect contributed to feelings of disenfranchisement among the Bengalis.

1965 War with India: Date: September 1965

The conflict over Kashmir led to a full-scale war between India and Pakistan. While the war initially rallied nationalistic sentiments, the aftermath revealed deep-seated issues within Pakistan's governance and military strategy.

Impact: The war placed a heavy economic burden on the country, exacerbating discontent among the populace. In East Pakistan, where resources were already strained, the perception of neglect by the central government intensified calls for greater autonomy.

Political Opposition: As the 1960s progressed, public dissatisfaction grew, particularly among students, laborers, and political activists. The Awami League, under Sheikh Mujibur Rahman, began advocating for greater autonomy for East Pakistan through its Six Point Movement, which called for rights and self-governance for Bengalis.

The growing political opposition culminated in protests and strikes, further destabilizing Ayub Khan's regime.

Resignation of Ayub Khan (1969)

Date: March 1969

Faced with mounting protests and increasing pressure from political opponents, Ayub Khan announced his resignation. The widespread public discontent was fueled by economic hardships and the political repression that characterized his regime.

Ayub Khan transferred power to General Yahya Khan, who declared another round of martial law, promising reforms and the holding of general elections. This transition marked a temporary hope for political change but continued the cycle of military control over civilian governance.

Recommended Books for Further Reading

"Pakistan: A Modern History" by Ian Talbot - This comprehensive work offers insights into the broader historical context of Pakistan, including its political developments.

"The Struggle for Pakistan: A Muslim Homeland and Global Politics" by Ayesha Jalal - A detailed exploration of the political forces shaping Pakistan's history and identity.

"The Pakistan Paradox: Instability and Resilience" by Christophe Jaffrelot - An analysis of Pakistan's political dynamics and the challenges it faces.

"The East Pakistan Crisis" by Hamid Khan - Focuses specifically on the events leading up to the Bangladesh Liberation War.

"Pakistan: The Formative Phase, 1857-1947" by K.K. Aziz - Provides essential historical context to understand the evolution of Pakistan's political landscape.

General Yahya Khan's Rule (1969-1971)

Yahya Khan's rule was marked by promises of political reform, yet it was plagued by significant challenges.

General Elections of December 1970: The elections were historic, as they were the first direct elections in Pakistan's history. The electoral process was seen as a potential turning point for democratic governance.

The Awami League won a landslide victory in East Pakistan, securing 160 out of 162 seats allocated to the region in the National Assembly, while the Pakistan Peoples Party (PPP) led by Zulfikar Ali Bhutto became the dominant party in West Pakistan. The electoral outcome raised expectations for greater autonomy and governance for East Pakistan, but Yahya Khan's government struggled to engage with the demands of the Awami League, leading to a deepening political crisis.

Six Point Movement:

The Awami League's Six Point Movement outlined demands for autonomy, including control over taxation, trade, and a separate currency. This agenda articulated the frustrations of the Bengali population and became a rallying point for their aspirations.

The movement galvanized support among the masses in East Pakistan and highlighted the significant political and economic disparities between the two wings of the country.

The six points are:

- ▶ **First:** The characteristics of the government will be federal or unitary and parliamentary system; it will elect the central governing body from the states of the Commonwealth based on direct and universal adult suffrage. The election of representatives to the Central Executive Council will be based on population.
- ▶ **Second:** The Central Government will have responsibility only for defense and foreign affairs and the conditional matters dealt with in the third phase.
- ▶ **Third:** Two separate currency systems should be introduced for East and West Pakistan, mutually or freely exchangeable in both regions. Alternatively, a monetary system may be in place on the condition that a central reserve system be established, under which there will be two Reserve Banks in the two regions. It should contain provisions to prevent the transfer of wealth or capital from one region to another.
- ▶ **Fourth:** The power to levy and collect revenue shall be in the hands of the states. Necessary revenue will be provided to the central government to meet defense and foreign affairs expenditures. According to the provisions of the Constitution, this fixed portion of the revenue will naturally accrue to the Central Government. Such a constitutional provision would ensure that the provision of revenue to the central government is consistent to ensure that control over fiscal policy rests with the states.
- ▶ **Fifth:** The constitution should provide for separate accounts of the foreign currency earned by each state of the Commonwealth of Nations to be kept under its control by the state government. The amount of foreign exchange required by the Central Government will be collected from the states based on the ratio determined as per the rules prescribed by the Constitution. Within the framework of the country's foreign policy, which is the responsibility of the central government, the power to enter into agreements regarding foreign trade and foreign aid is vested in the regional or provincial governments, according to the Constitution.
- ▶ **Sixth:** The States shall be empowered to form militias or para-military forces to assist in the effective maintenance of national security.

Major Events 1971:

Operation Searchlight:

March 25, 1971

In response to rising demands for independence and the political impasse, Yahya Khan ordered Operation Searchlight, a military crackdown aimed at suppressing dissent in East Pakistan.

The operation resulted in widespread atrocities, including mass killings and the displacement of millions. Reports of human rights violations and genocide emerged, drawing international condemnation. This brutal response intensified calls for independence and led to the formation of the Mukti Bahini (Bangladeshi liberation forces), which sought to free East Pakistan from West Pakistani rule.

Civil War and Creation of Bangladesh:

March to December 1971

Following the crackdown, a civil war erupted between the Pakistani military and the Mukti Bahini. The conflict was marked by severe humanitarian crises, with millions fleeing to neighboring India.

The war concluded with the surrender of Pakistani forces on December 16, 1971. This event marked the creation of Bangladesh as an independent nation, fundamentally altering the political landscape of South Asia and leading to significant introspection within Pakistan about its national identity and governance.

Aftermath and Legacy:

The loss of East Pakistan was a profound turning point for Pakistan, leading to a reevaluation of national policies and governance structures.

Adoption of the 1973 Constitution: The new constitution aimed to rectify some of the political and administrative failings of the past. It established a parliamentary system and enshrined fundamental rights, emphasizing federalism and the importance of provincial autonomy. Although the constitution was a step towards democratization, the challenges of governance and the legacy of military involvement in politics continued to plague the nation.

The period from 1958 to 1971 illustrates several critical themes in Pakistan's political history:

- ▶ **Authoritarianism vs. Democracy:** The struggle between military control and democratic aspirations is evident, with the military's dominance stifling political engagement and fostering public disillusionment.
- ▶ **Regional Disparities:** Economic neglect and political marginalization of East Pakistan fueled separatist sentiments, ultimately leading to its secession.
- ▶ **Civil-Military Relations:** The interplay between military leadership and civilian governance had profound implications for Pakistan's political stability and development, setting precedents for future governance challenges.

Conclusion

The constitutional and political developments in Pakistan from 1958 to 1971 reflect a complex interplay of military power, political opposition, and regional tensions. The failure to accommodate diverse political aspirations led to significant conflict and ultimately the secession of East Pakistan. This period laid the groundwork for ongoing political challenges in Pakistan, highlighting the fragile nature of its democratic institutions and the deep-rooted regional disparities.